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1:09-cv-00019-MSK-MEH USA v. CEMEX, Inc.

Marcia S. Krieger, presiding

Michael E. Hegarty, referral

Date filed: 01/06/2009

Date terminated: 06/12/2013

Date of last filing: 03/28/2018

Documents

Doc. No.	Dates	Description
1	<i>Filed:</i> 01/06/2009 <i>Entered:</i> 01/07/2009	Complaint
		<i>Docket Text:</i> COMPLAINT against CEMEX, Inc., filed by USA. (Attachments: # (1) Civil Cover Sheet)(llk,)
2	<i>Filed & Entered:</i> 01/08/2009	Order Referring Case to Magistrate Judge
		<i>Docket Text:</i> ORDER OF REFERENCE TO MAGISTRATE JUDGE AND LETTER TO COUNSEL: REFERRING CASE to Magistrate Judge Michael E. Hegarty. Signed by Judge Marcia S. Krieger on 1/8/09. (msksec,)
3	<i>Filed & Entered:</i> 01/08/2009	Minute Order
		<i>Docket Text:</i> MINUTE ORDER Set Hearing: Scheduling Conference set for 3/17/2009 09:30 AM in Courtroom C203 before Magistrate Judge Michael E. Hegarty. Entered by Magistrate Judge Michael E. Hegarty on 1/8/2009. (mehcd)
4	<i>Filed & Entered:</i> 01/27/2009	Order
		<i>Docket Text:</i> ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS USED IN EVIDENTIARY HEARINGS AND TRIALS: Any exhibits and depositions used during evidentiary hearings or trials, counsel for the parties shall retrieve the originals of such exhibits and depositions from the Court following the evidentiary hearing or trial, and shall retain same for 60 days beyond the later of the time to appeal or conclusion of any appellate proceedings. The Court will retain its copy of the exhibits for the same time period after which the documents will be destroyed. by Judge Marcia S. Krieger on 1/27/09. (mskcd)
5	<i>Filed & Entered:</i> 02/09/2009	Notice of Case Association
		<i>Docket Text:</i> NOTICE OF CASE ASSOCIATION by Plaintiff USA (Homiak, Robert)
6	<i>Filed & Entered:</i> 02/09/2009	Waiver of Service Executed
		<i>Docket Text:</i> WAIVER OF SERVICE Returned Executed by USA. CEMEX, Inc. waiver sent on 1/8/2009, answer due 3/9/2009. (Homiak, Robert)
7	<i>Filed & Entered:</i> 02/18/2009	Notice of Entry of Appearance
		<i>Docket Text:</i> NOTICE of Entry of Appearance by John N. Moscato on behalf of USA (Moscato, John)
8	<i>Filed & Entered:</i> 03/02/2009	Minute Order
		<i>Docket Text:</i> MINUTE ORDER: Status Conference set for 3/3/2009 at 10:45 AM before Magistrate Judge Michael E. Hegarty, by Magistrate Judge Michael E. Hegarty on 03/02/09. (wjc,)
9	<i>Filed & Entered:</i> 03/02/2009	Notice of Entry of Appearance
		<i>Docket Text:</i> NOTICE of Entry of Appearance by Hugh Q. Gottschalk on behalf of CEMEX, Inc. (Gottschalk, Hugh)
10	<i>Filed & Entered:</i> 03/03/2009	Status Conference

10	<i>Docket Text:</i> Courtroom Minutes/Minute Order for proceedings held before Magistrate Judge Michael E. Hegarty: Status Conference held on 3/3/2009. Reset Hearing: Scheduling Conference set for 3/17/2009 is VACATED and RESET to 4/6/2009 09:15 AM in Courtroom C203 before Magistrate Judge Michael E. Hegarty. (Court Reporter FTR - C. Coomes) (mehcd)
11	<i>Filed & Entered:</i> 03/03/2009 <i>Notice of Entry of Appearance</i> <i>Docket Text:</i> NOTICE of Entry of Appearance by Christina J. Valerio on behalf of CEMEX, Inc. (Valerio, Christina)
12	<i>Filed & Entered:</i> 03/04/2009 <i>Motion for Extension of Time to File Answer or Otherwise Respond</i> <i>Terminated:</i> 03/05/2009 <i>Docket Text:</i> Stipulated MOTION for Extension of Time to File Answer or Otherwise Respond re [1] Complaint by Defendant CEMEX, Inc.. (Attachments: # (1) Proposed Order (PDF Only))(Valerio, Christina)
14	<i>Filed & Entered:</i> 03/05/2009 <i>Order on Motion for Extension of Time to Answer or Otherwise Respond</i> <i>Docket Text:</i> MINUTE ORDER granting [12] Stipulated Motion for Extension of Time to Answer or Otherwise Plead and Respond. CEMEX, Inc. answer due 3/23/2009, by Magistrate Judge Michael E. Hegarty on 03/05/09.(wjc,)
15	<i>Filed & Entered:</i> 03/05/2009 <i>Notice of Entry of Appearance</i> <i>Docket Text:</i> NOTICE of Entry of Appearance by Chet M. Thompson on behalf of CEMEX, Inc. (Thompson, Chet)
16	<i>Filed & Entered:</i> 03/11/2009 <i>Amended Complaint</i> <i>Docket Text:</i> AMENDED COMPLAINT <i>First Amended Complaint</i> against CEMEX, Inc., filed by USA. (Moscato, John)
17	<i>Filed & Entered:</i> 03/30/2009 <i>Answer to Amended Complaint</i> <i>Docket Text:</i> ANSWER to [16] Amended Complaint by CEMEX, Inc..(Thompson, Chet)
18	<i>Filed & Entered:</i> 03/30/2009 <i>Corporate Disclosure Statement</i> <i>Docket Text:</i> CORPORATE DISCLOSURE STATEMENT by Defendant CEMEX, Inc... (Thompson, Chet)
19	<i>Filed & Entered:</i> 03/30/2009 <i>Motion to Dismiss</i> <i>Terminated:</i> 03/31/2010 <i>Docket Text:</i> MOTION to Dismiss <i>First and Second Claims for Relief</i> by Defendant CEMEX, Inc.. (Thompson, Chet)
20	<i>Filed & Entered:</i> 03/30/2009 <i>Brief in Support of Motion</i> <i>Docket Text:</i> BRIEF in Support re [19] MOTION to Dismiss <i>First and Second Claims for Relief</i> filed by Defendant CEMEX, Inc.. (Attachments: # (1) Case Law, Part 1, # (2) Case Law, Part 2)(Thompson, Chet)
21	<i>Filed & Entered:</i> 04/01/2009 <i>Proposed Scheduling Order</i> <i>Docket Text:</i> Proposed Scheduling Order by Plaintiff USA. (Attachments: # (1) Appendix Stipulation Regarding Discovery Procedure)(Moscato, John)
22	<i>Filed & Entered:</i> 04/01/2009 <i>Proposed Scheduling Order</i> <i>Docket Text:</i> Proposed Scheduling Order (<i>Amended pursuant to instruction received by the Court</i>) by Plaintiff USA. (Attachments: # (1) Appendix Stipulation Regarding Discovery Procedure)(Moscato, John)
23	<i>Filed & Entered:</i> 04/06/2009 <i>Scheduling Conference</i> <i>Docket Text:</i> Courtroom Minutes/Minute Order for proceedings held before Magistrate Judge Michael E. Hegarty: Scheduling Conference held on 4/6/2009. Discovery due by 2/5/2010. Dispositive Motions due by 3/8/2010. Settlement Conference set for 6/2/2009 10:00 AM in Courtroom C203 before Magistrate Judge Michael E. Hegarty. (Court Reporter FTR - C. Coomes) (mehcd)

<u>24</u>	<i>Filed & Entered:</i> 04/06/2009	Scheduling Order
	<i>Docket Text:</i> SCHEDULING ORDER: Discovery due by 2/5/2010. Dispositive Motions due by 3/8/2010. Settlement Conference set for 6/2/2009 at 10:00 AM before Magistrate Judge Michael E. Hegarty, by Magistrate Judge Michael E. Hegarty on 04/06/09. (wjc,)	
<u>25</u>	<i>Filed & Entered:</i> 04/06/2009	Order
	<i>Docket Text:</i> TRIAL PREPARATION ORDER-CIVIL: Final Pretrial Conference set for 7/8/2010 at 09:00 AM in Courtroom A 901 before Judge Marcia S. Krieger. by Judge Marcia S. Krieger on 4/6/09. (msksec,)	
<u>26</u>	<i>Filed & Entered:</i> 04/06/2009 <i>Terminated:</i> 04/08/2009	Motion for Extension of Time
	<i>Docket Text:</i> STRICKEN - MOTION For Extension of Time to Designate Non-Party at Fault by Defendant CEMEX, Inc.. (Attachments: # (1) Proposed Order (PDF Only))(Valerio, Christina) Modified on 4/8/2009 to add text word Stricken (wjc,).	
<u>28</u>	<i>Filed & Entered:</i> 04/08/2009	Order on Motion for Extension of Time to File
	<i>Docket Text:</i> MINUTE ORDER striking [26] Defendant's Motion for Extension of Time to Designate Non-Party at Fault for failure to comply with D.C. Colo. LCivR 7.1A and B, by Magistrate Judge Michael E. Hegarty on 04/08/09.(wjc,)	
<u>29</u>	<i>Filed & Entered:</i> 04/13/2009 <i>Terminated:</i> 04/15/2009	Motion for Extension of Time
	<i>Docket Text:</i> Amended MOTION For Extension of Time to <i>Designate Non-Party at Fault (Unopposed)</i> by Defendant CEMEX, Inc.. (Attachments: # (1) Proposed Order (PDF Only))(Valerio, Christina)	
<u>31</u>	<i>Filed & Entered:</i> 04/15/2009	Order on Motion for Extension of Time to File
	<i>Docket Text:</i> MINUTE ORDER granting [29] Defendant's Amended Unopposed Motion for Extension of Time to Designate Non-Party at Fault on or before 05/04/09, by Magistrate Judge Michael E. Hegarty on 04/15/09.(wjc,)	
<u>32</u>	<i>Filed & Entered:</i> 05/06/2009 <i>Terminated:</i> 05/20/2009	Motion to Bifurcate
	<i>Docket Text:</i> Joint MOTION to Bifurcate <i>Proceedings</i> by Plaintiff USA, Defendant CEMEX, Inc.. (Attachments: # (1) Proposed Order (PDF Only))(Homiak, Robert)	
<u>33</u>	<i>Filed & Entered:</i> 05/06/2009	Brief in Support of Motion
	<i>Docket Text:</i> BRIEF in Support re [32] Joint MOTION to Bifurcate <i>Proceedings</i> filed by Plaintiff USA, Defendant CEMEX, Inc.. (Attachments: # (1) Exhibit 1 - SEC v. Nacchio unpublished opinion)(Homiak, Robert)	
<u>35</u>	<i>Filed & Entered:</i> 05/08/2009 <i>Terminated:</i> 05/08/2009	Motion for Extension of Time to File Response/Reply
	<i>Docket Text:</i> Unopposed MOTION for Extension of Time to File Response/Reply as to [19] MOTION to Dismiss <i>First and Second Claims for Relief</i> by Plaintiff USA. (Attachments: # (1) Proposed Order (PDF Only))(Homiak, Robert)	
<u>38</u>	<i>Filed & Entered:</i> 05/18/2009	Brief in Opposition to Motion
	<i>Docket Text:</i> BRIEF in Opposition re [19] MOTION to Dismiss <i>First and Second Claims for Relief Pursuant to Fed. R. Civ. P. 12(b)(6)</i> filed by Plaintiff USA. (Attachments: # (1) Exhibit 1 - Part 1 - CAQCC Reg. 3, Part C (1995) [0001-0049], # (2) Exhibit 1 - Part 2 - CAQCC "Common Provisions Regulations" (1995) [0050-0090], # (3) Exhibit 1 - Part 3 - CAQCC Reg. 3 (1995) SIP [0091-0171], # (4) Exhibit 1 - Part 4 - CAQCC Reg. 3, Part A (1998) SIP [0172-0248], # (5) Exhibit 1 - Part 5 - CAQCC Reg. 3, Part B (1998) SIP [0249-0297], # (6) Exhibit 2 - Unpublished Opinions)(Moscato, John)	
<u>39</u>	<i>Filed & Entered:</i> 05/20/2009	Order on Motion to Bifurcate
	<i>Docket Text:</i> Minute Entry for proceedings held before Judge Marcia S. Krieger: [32] Motion to Bifurcate is GRANTED in part and DENIED in part. Motion Hearing held on 5/20/2009. (Court Reporter Paul	

	Zuckerman) (mskcd)	
40	<i>Filed & Entered:</i> <i>Terminated:</i>	05/20/2009 05/21/2009
	Motion to Vacate	
	<i>Docket Text:</i> Joint MOTION to Vacate [23] Scheduling Conference,, Set Scheduling Order Deadlines, and Reset Settlement Conference by Plaintiff USA, Defendant CEMEX, Inc.. (Moscato, John)	
41	<i>Filed & Entered:</i>	05/20/2009
	Brief in Support of Motion	
	<i>Docket Text:</i> BRIEF in Support re [40] Joint MOTION to Vacate [23] Scheduling Conference,, Set Scheduling Order Deadlines, and Reset Settlement Conference filed by Plaintiff USA, Defendant CEMEX, Inc.. (Moscato, John)	
43	<i>Filed:</i> <i>Entered:</i>	05/21/2009 05/22/2009
	Order on Motion to Vacate	
	<i>Docket Text:</i> MINUTE ORDER granting [40] Joint Motion to Vacate and Reset Settlement Conference. Settlement Conference reset for 8/25/2009 10:00 AM in Courtroom C203 before Magistrate Judge Michael E. Hegarty, by Magistrate Judge Michael E. Hegarty on 5/21/09.(gmssl,)	
44	<i>Filed & Entered:</i>	05/28/2009
	Notice (Other)	
	<i>Docket Text:</i> NOTICE of Firm Name Change by Defendant CEMEX, Inc. (Valerio, Christina)	
45	<i>Filed & Entered:</i>	06/05/2009
	Reply to Response to Motion	
	<i>Docket Text:</i> REPLY to Response to [19] MOTION to Dismiss <i>First and Second Claims for Relief</i> filed by Defendant CEMEX, Inc.. (Attachments: # (1) Exhibit A, # (2) Exhibit B, # (3) Exhibit C)(Thompson, Chet)	
46	<i>Filed & Entered:</i>	07/02/2009
	Notice of Entry of Appearance	
	<i>Docket Text:</i> NOTICE of Entry of Appearance by Richard E. Schwartz on behalf of CEMEX, Inc. (Schwartz, Richard)	
47	<i>Filed & Entered:</i> <i>Terminated:</i>	07/22/2009 07/24/2009
	Motion to Amend/Correct/Modify	
	<i>Docket Text:</i> Joint MOTION to Amend/Correct/Modify [24] Scheduling Order by Plaintiff USA, Defendant CEMEX, Inc.. (Attachments: # (1) Proposed Order (PDF Only) Revised Scheduling Order)(Moscato, John)	
48	<i>Filed & Entered:</i>	07/22/2009
	Brief in Support of Motion	
	<i>Docket Text:</i> BRIEF in Support of [47] Joint MOTION to Amend/Correct/Modify [24] Scheduling Order filed by Plaintiff USA, Defendant CEMEX, Inc.. (Moscato, John)	
50	<i>Filed:</i> <i>Entered:</i>	07/24/2009 07/27/2009
	Order on Motion to Amend/Correct/Modify	
	<i>Docket Text:</i> MINUTE ORDER granting in part and denying without prejudice in part [47] Joint Motion to Revise Scheduling Order. Settlement Conference set for 8/25/2009 is VACATED and RESET to 10/23/2009 10:00 AM in Courtroom C203 before Magistrate Judge Michael E. Hegarty. By Magistrate Judge Michael E. Hegarty on 7/24/2009. (mehcd) Modified on 7/28/2009 to add text without prejudice (wjc,).	
52	<i>Filed & Entered:</i> <i>Terminated:</i>	07/28/2009 07/29/2009
	Motion to Amend/Correct/Modify	
	<i>Docket Text:</i> Joint MOTION to Amend/Correct/Modify [25] Order by Plaintiff USA, Defendant CEMEX, Inc.. (Moscato, John)	
53	<i>Filed & Entered:</i>	07/28/2009
	Brief in Support of Motion	
	<i>Docket Text:</i> BRIEF in Support of [52] Joint MOTION to Amend/Correct/Modify [25] Order filed by Plaintiff USA, Defendant CEMEX, Inc.. (Attachments: # (1) Proposed Order (PDF Only) Scheduling Order) (Moscato, John)	
55	<i>Filed & Entered:</i> <i>Terminated:</i>	08/04/2009 08/17/2009
	Motion to Amend/Correct/Modify	

	<i>Docket Text:</i> Renewed Joint MOTION to Modify the [24] Scheduling Order by Plaintiff USA. (Attachments: # (1) Proposed Order (PDF Only) [Proposed] Revised Scheduling Order)(Moscato, John) Modified on 8/5/2009 to add linkage and edit text to clarify title of document (wjc,).	
56	<i>Filed & Entered:</i> 08/04/2009	Brief in Support of Motion
	<i>Docket Text:</i> BRIEF in Support of [55] Renewed MOTION to Amend/Correct/Modify <i>Renewed Joint Motion to Modify the Scheduling Order Memorandum In Support Of Renewed Joint Motion To Modify The Scheduling Order</i> filed by Plaintiff USA. (Moscato, John)	
59	<i>Filed & Entered:</i> 08/13/2009 <i>Terminated:</i> 08/17/2009	Report and Recommendations
	<i>Docket Text:</i> WITHDRAWN - RECOMMENDATION the [55] Renewed Joint MOTION to Modify the Scheduling Order be granted. The Court recommends that the District Court grant the Motion and permit this Court to enter the Amended Scheduling Order attached to this Recommendation. The proposed scheduling adjustments surpass the date set for a Final Pretrial Conference before the District Court, which is why this Court recommends that the District Court adopt the proposed deadlines and reset the Final Pretrial Conference as it sees fit, by Magistrate Judge Michael E. Hegarty on 08/13/09. (Attachments: # (1) Attachment - Scheduling Order)(wjc,) Modified on 8/19/2009 to add text Withdrawn pursuant to Minute Order dated 08/17/2009 (wjc,).	
60	<i>Filed & Entered:</i> 08/17/2009	Order on Motion to Amend/Correct/Modify
	<i>Docket Text:</i> MINUTE ORDER withdrawing [59] Report and Recommendation, and granting [55] Renewed Joint Motion to Modify the Scheduling Order. By Magistrate Judge Michael E. Hegarty on 8/17/2009. (mehcd)	
61	<i>Filed & Entered:</i> 08/17/2009	Scheduling Order
	<i>Docket Text:</i> AMENDED SCHEDULING ORDER: Discovery due by 2/5/2010. Dispositive Motions due by 12/31/2010. Settlement Conference set for 10/23/2009 10:00 AM in Courtroom C203 before Magistrate Judge Michael E. Hegarty. Confidential Settlement Statements due by 10/9/2009. By Magistrate Judge Michael E. Hegarty on 8/17/2009. (mehcd)	
62	<i>Filed & Entered:</i> 08/19/2009	Notice of Entry of Appearance
	<i>Docket Text:</i> NOTICE of Entry of Appearance by James D. Freeman on behalf of USA (Freeman, James)	
63	<i>Filed & Entered:</i> 08/27/2009 <i>Terminated:</i> 08/31/2009	Motion for Order
	<i>Docket Text:</i> Joint MOTION for Order to <i>Modify Trial Preparation Order</i> by Plaintiff USA. (Moscato, John)	
64	<i>Filed & Entered:</i> 08/27/2009	Brief in Support of Motion
	<i>Docket Text:</i> BRIEF in Support of [63] Joint MOTION for Order to <i>Modify Trial Preparation Order Memorandum In Support Of Joint Motion To Modify Trial Preparation Order</i> filed by Plaintiff USA. (Moscato, John)	
66	<i>Filed & Entered:</i> 09/23/2009 <i>Terminated:</i> 09/24/2009	Motion for Extension of Time
	<i>Docket Text:</i> Unopposed MOTION for Extension of Time to <i>Respond to Cemex Inc.'s First Set of Interrogatories and Requests for Production</i> by Plaintiff USA. (Attachments: # (1) Proposed Order (PDF Only) Proposed Order Granting United States' Unopposed Motion for Extension of Time to Respond to Cemex Inc.'s First Set of Interrogatories and Requests for Production)(Moscato, John)	
67	<i>Filed & Entered:</i> 09/23/2009	Brief in Support of Motion
	<i>Docket Text:</i> BRIEF in Support of [66] Unopposed MOTION for Extension of Time to <i>Respond to Cemex Inc.'s First Set of Interrogatories and Requests for Production</i> filed by Plaintiff USA. (Moscato, John)	
68	<i>Filed & Entered:</i> 09/23/2009 <i>Terminated:</i> 09/24/2009	Motion for Extension of Time

	<i>Docket Text:</i> Unopposed MOTION for Extension of Time to <i>Respond to USA's First Set of Interrogatories and Requests for Production</i> by Defendant CEMEX, Inc.. (Attachments: # (1) Proposed Order (PDF Only)) (Thompson, Chet)	
71	<i>Filed & Entered:</i> 09/24/2009	Order on Motion for Extension of Time to File
	<i>Docket Text:</i> MINUTE ORDER granting the United States' [66] Unopposed Motion for Extension of Time to Respond to CEMEX Inc.'s First Set of Interrogatories and Requests for Production. The United States shall respond on or before 10/28/2009. Defendant's [68] Unopposed Motion for Extension of Time to Respond to United States of America's First Set of Interrogatories and Requests for Production is granted. Defendant shall respond on or before 10/26/2009, by Magistrate Judge Michael E. Hegarty on 09/24/09. (wjc,)	
72	<i>Filed & Entered:</i> 10/02/2009	Notice of Entry of Appearance
	<i>Docket Text:</i> NOTICE of Entry of Appearance <i>Derek A. Hahn</i> by Derek A. Hahn on behalf of CEMEX, Inc. (Hahn, Derek)	
73	<i>Filed & Entered:</i> 10/13/2009 <i>Terminated:</i> 10/13/2009	Motion to Withdraw as Attorney
	<i>Docket Text:</i> MOTION to Withdraw as Attorney by Plaintiff USA. (Attachments: # (1) Proposed Order (PDF Only) Proposed Order Granting Motion for Withdrawal of Counsel)(Homiak, Robert)	
75	<i>Filed & Entered:</i> 10/13/2009	Order on Motion to Withdraw as Attorney
	<i>Docket Text:</i> MINUTE ORDER granting [73] Motion for Withdrawal of Counsel. Attorney Robert R. Homiak is terminated. By Magistrate Judge Michael E. Hegarty on 10/13/2009. (mehcd)	
76	<i>Filed & Entered:</i> 10/14/2009 <i>Terminated:</i> 10/16/2009	Motion for Protective Order
	<i>Docket Text:</i> Joint MOTION for Protective Order <i>for Entry of Stipulation and Order of Confidentiality</i> by Plaintiff USA. (Attachments: # (1) Proposed Order (PDF Only) Stipulated Agreement and Confidentiality Order Regarding Settlement Negotiations)(Moscato, John)	
78	<i>Filed & Entered:</i> 10/16/2009	Order on Motion for Protective Order
	<i>Docket Text:</i> MINUTE ORDER granting [76] Joint Motion for Entry of Stipulation and Order of Confidentiality. The Stipulated Agreement and Confidentiality Order Regarding Settlement Negotiations is accepted and entered contemporaneously with this minute order, by Magistrate Judge Michael E. Hegarty on 10/16/2009.(wjc,)	
79	<i>Filed & Entered:</i> 10/16/2009	Protective Order
	<i>Docket Text:</i> STIPULATED AGREEMENT AND CONFIDENTIALITY ORDER REGARDING SETTLEMENT NEGOTIATIONS by Magistrate Judge Michael E. Hegarty on 10/16/2009. (wjc,)	
81	<i>Filed:</i> 10/23/2009 <i>Entered:</i> 10/26/2009	Settlement Conference
	<i>Docket Text:</i> Minute Entry for proceedings held before Magistrate Judge Michael E. Hegarty: Settlement Conference held on 10/23/2009. (mehcd)	
80	<i>Filed & Entered:</i> 10/26/2009	Minute Order
	<i>Docket Text:</i> MINUTE ORDER The parties shall exchange discovery responses on 10/26/2009. Status Conference set for 11/16/2009 10:00 AM in Courtroom C203 before Magistrate Judge Michael E. Hegarty to discuss Defendant's responses to the list of concerns that Plaintiff shall produce to Defendant. Settlement Conference continued to 12/3/2009 10:00 AM in Courtroom C203 before Magistrate Judge Michael E. Hegarty. Discovery is INFORMALLY STAYED pending the continued settlement conference. By Magistrate Judge Michael E. Hegarty on 10/26/2009. (mehcd)	
82	<i>Filed:</i> 11/18/2009 <i>Entered:</i> 11/19/2009	Settlement Conference

	<i>Docket Text:</i> Minute Entry for proceedings held before Magistrate Judge Michael E. Hegarty: Settlement Conference held on 11/16/2009. (mehcd)	
83	<i>Filed:</i> 12/03/2009 <i>Entered:</i> 12/04/2009	Settlement Conference
	<i>Docket Text:</i> Minute Entry for proceedings held before Magistrate Judge Michael E. Hegarty: Supplemental Settlement Conference held on 12/3/2009. (mehcd) Modified on 12/7/2009 to correct filed date (wjc,). Modified on 12/7/2009 to correct filed date to original date (wjc,).	
86	<i>Filed & Entered:</i> 12/07/2009	Minute Order
	<i>Docket Text:</i> MINUTE ORDER Settlement Conference set for 2/23/2010 10:00 AM in Courtroom C203 before Magistrate Judge Michael E. Hegarty. By Magistrate Judge Michael E. Hegarty on 12/7/2009. (mehcd)	
88	<i>Filed:</i> 02/23/2010 <i>Entered:</i> 03/01/2010	Settlement Conference
	<i>Docket Text:</i> Minute Entry for proceedings held before Magistrate Judge Michael E. Hegarty: Settlement Conference held on 2/23/2010. No settlement was reached. (mehcd)	
87	<i>Filed & Entered:</i> 02/26/2010	Minute Order
	<i>Docket Text:</i> MINUTE ORDER Settlement Conference set for 4/21/2010 09:00 AM in Courtroom C203 before Magistrate Judge Michael E. Hegarty. Confidential Settlement Statements due by 4/12/2010. Informal stay of discovery shall continue through 4/21/2010. If the parties intend to rely on documents and other materials in any presentation given during the conference set for 4/21/2010, the presenting party shall provide such documents and other materials to the other party on or before 4/12/ 010. By Magistrate Judge Michael E. Hegarty on 2/26/2010. (mehcd)	
89	<i>Filed & Entered:</i> 03/31/2010	Order on Motion to Dismiss
	<i>Docket Text:</i> OPINION AND ORDER DENYING MOTION TO DISMISS: For the reasons set forth in the Order, Cemex's Motion to Dismiss [19] is DENIED . Judge Marcia S. Krieger on 3/31/10.(msksec,)	
90	<i>Filed & Entered:</i> 04/01/2010 <i>Terminated:</i> 04/06/2010	Motion for Extension of Time
	<i>Docket Text:</i> Unopposed MOTION for Extension of Time to <i>Vacate and Reset Settlement Conference and to Extend Submission Date of the Confidential Settlement Statements</i> by Defendant CEMEX, Inc.. (Attachments: # (1) Proposed Order (PDF Only) Granting Unopposed Motion)(Valerio, Christina)	
92	<i>Filed & Entered:</i> 04/06/2010	Order on Motion for Extension of Time to File
	<i>Docket Text:</i> MINUTE ORDER granting [90] Defendant's Unopposed Motion to Vacate and Reset Settlement Conference and to Extend Submission date of the Confidential Settlement Statements. Settlement Conference set for 4/21/2010 is RESET to 5/21/2010 at 10:00 AM in Courtroom C203 before Magistrate Judge Michael E. Hegarty. Confidential Settlement Statements due by 5/12/2010. By Magistrate Judge Michael E. Hegarty on 4/6/2010. (mehcd)	
93	<i>Filed & Entered:</i> 04/30/2010 <i>Terminated:</i> 05/06/2010	Motion for Extension of Time to File Answer or Otherwise Respond
	<i>Docket Text:</i> Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond re [16] Amended Complaint by Defendant CEMEX, Inc.. (Attachments: # (1) Exhibit A - Defendant's Amended Answer to Plaintiff's First Amended Complaint, # (2) Proposed Order (PDF Only) Granting Extension to File Answer to Amended Complaint)(Valerio, Christina)	
95	<i>Filed & Entered:</i> 05/06/2010	Order on Motion for Extension of Time to Answer or Otherwise Respond
	<i>Docket Text:</i> MINUTE ORDER granting [93] Defendant's Unopposed Motion for Extension of Time to Answer [16] First Amended Complaint. Defendant may submit its answer as of 4/30/2010. The Clerk of Court is directed to enter the Amended Answer, dated 4/30/2010 and located at Docket #93-1. By Magistrate Judge Michael E. Hegarty on 5/6/2010. (mehcd)	

<u>96</u>	<i>Filed:</i>	05/06/2010	Amended Answer to Complaint
	<i>Entered:</i>	05/07/2010	
	<i>Docket Text:</i> AMENDED ANSWER to [16] Plaintiff's First Amended Complaint by Defendant CEMEX, Inc. (wjc,)		
<u>97</u>	<i>Filed & Entered:</i>	05/21/2010	Minute Order
	<i>Docket Text:</i> MINUTE ORDER Status and Scheduling Conference set for 6/28/2010 01:30 PM in Courtroom C203 before Magistrate Judge Michael E. Hegarty. The informal stay of discovery shall continue through the 6/28/2010 conference, when the Court sets a new schedule for the progression of this case. Defendant should be prepared to complete production of documents to Plaintiff by 6/30/2010. If the parties intend to rely on documents and other materials in any presentation given during the conference set for 6/28/2010, the presenting party shall provide such documents and other materials to the other party on or before 6/21/2010. By Magistrate Judge Michael E. Hegarty on 5/21/2010. (mehcd)		
<u>98</u>	<i>Filed & Entered:</i>	06/21/2010	Motion to Amend/Correct/Modify
	<i>Terminated:</i>	06/28/2010	
	<i>Docket Text:</i> Joint MOTION to Amend/Correct/Modify [61] Scheduling Order, by Plaintiff USA. (Attachments: # (1) Proposed Order (PDF Only) Proposed Second Amended Scheduling Order)(Moscato, John)		
<u>99</u>	<i>Filed & Entered:</i>	06/21/2010	Brief in Support of Motion
	<i>Docket Text:</i> BRIEF in Support of [98] Joint MOTION to Amend/Correct/Modify [61] Scheduling Order, filed by Plaintiff USA. (Moscato, John)		
<u>101</u>	<i>Filed & Entered:</i>	06/28/2010	Order on Motion to Amend/Correct/Modify
	<i>Docket Text:</i> Courtroom Minutes/Minute Order for proceedings held before Magistrate Judge Michael E. Hegarty: Telephonic Scheduling and Status Conference held on 6/28/2010, granting [98] the Joint Motion to Revise Amended Scheduling Order. Fact Discovery due by 11/17/2010. All Expert Discovery due by 6/1/2011. Dispositive Motions due by 6/1/2011. (Court Reporter FTR - C. Coomes) (mehcd)		
<u>102</u>	<i>Filed:</i>	06/28/2010	Scheduling Order
	<i>Entered:</i>	06/29/2010	
	<i>Docket Text:</i> SCHEDULING ORDER by Magistrate Judge Michael E. Hegarty on 6/28/2010. (mehcd)		
<u>103</u>	<i>Filed & Entered:</i>	06/29/2010	Motion to Amend/Correct/Modify
	<i>Terminated:</i>	06/29/2010	
	<i>Docket Text:</i> Joint MOTION to Amend/Correct/Modify [25] Order by Plaintiff USA. (Moscato, John)		
<u>104</u>	<i>Filed & Entered:</i>	06/29/2010	Brief in Support of Motion
	<i>Docket Text:</i> BRIEF in Support of [103] Joint MOTION to Amend/Correct/Modify [25] Order filed by Plaintiff USA. (Moscato, John)		
<u>107</u>	<i>Filed & Entered:</i>	07/08/2010	Status Conference
	<i>Docket Text:</i> Minute Entry for Rule 16 Hearing held before Judge Marcia S. Krieger on 7/8/2010. Matters addressed are contained in the Minutes. (Court Reporter Paul Zuckerman) (mskcd)		
<u>108</u>	<i>Filed & Entered:</i>	07/08/2010	Stipulation
	<i>Docket Text:</i> STIPULATION Regarding Withdrawal of United States' Third and Forth Claims for Relief by Plaintiff USA. (Moscato, John)		
<u>109</u>	<i>Filed & Entered:</i>	09/22/2010	Notice of Change of Address/Contact Information
	<i>Docket Text:</i> NOTICE of Change of Address by John N. Moscato (Moscato, John)		
<u>110</u>	<i>Filed:</i>	10/04/2010	Settlement Conference
	<i>Entered:</i>	10/05/2010	
	<i>Docket Text:</i> Minute Entry for proceedings held before Magistrate Judge Michael E. Hegarty: Supplemental Settlement Conference held on 10/4/2010. (mehcd)		

111	<i>Filed & Entered:</i> <i>Terminated:</i>	10/18/2010 10/19/2010	Motion to Amend/Correct/Modify
	<i>Docket Text:</i> Joint MOTION to Amend/Correct/Modify [102] Scheduling Order by Plaintiff USA. (Attachments: # (1) Proposed Document Third Amended Scheduling Order)(Moscato, John)		
112	<i>Filed & Entered:</i>	10/18/2010	Brief in Support of Motion
	<i>Docket Text:</i> BRIEF in Support of [111] Joint MOTION to Amend/Correct/Modify [102] Scheduling Order filed by Plaintiff USA. (Moscato, John)		
114	<i>Filed & Entered:</i>	10/19/2010	Order on Motion to Amend/Correct/Modify
	<i>Docket Text:</i> MINUTE ORDER granting [111] the Joint Motion to Revise Scheduling Order. Fact discovery due by 12/17/2010. Plaintiff's Rule 26(a)(2) disclosures due by 1/31/2011. Defendant's Rule 26(a)(2) disclosures due by 4/11/2011. Expert discovery due by 7/1/2011. Dispositive Motions due by 7/1/2011. By Magistrate Judge Michael E. Hegarty on 10/19/2010. (mehcd)		
115	<i>Filed & Entered:</i>	12/17/2010	Notice of Entry of Appearance
	<i>Docket Text:</i> NOTICE of Entry of Appearance by Leigh Paige Rende on behalf of USA (Rende, Leigh)		
116	<i>Filed & Entered:</i> <i>Terminated:</i>	12/30/2010 01/05/2011	Motion for Leave
	<i>Docket Text:</i> Unopposed MOTION for Leave to <i>COMPLETE CERTAIN DISCOVERY AND TO MODIFY SCHEDULING ORDER</i> by Plaintiff USA. (Attachments: # (1) Proposed Order (PDF Only))(Moscato, John)		
117	<i>Filed & Entered:</i> <i>Terminated:</i>	12/30/2010 12/30/2010	Motion for Leave
	<i>Docket Text:</i> MEMORANDUM in Support of [116] Uncontested MOTION for Leave to Complete Certain Discovery and to Modify Scheduling Order by Plaintiff USA. (Moscato, John) Modified on 12/30/2010 to edit text to clarify title of document (wjc,).		
120	<i>Filed & Entered:</i> <i>Terminated:</i>	12/30/2010 01/27/2011	Motion for Leave
	<i>Docket Text:</i> MOTION for Leave to <i>TAKE THE DEPOSITION OF ROYCE SMITH AND FOR EXPEDITED BRIEFING SCHEDULE</i> by Plaintiff USA. (Moscato, John)		
121	<i>Filed & Entered:</i>	12/30/2010	Brief in Support of Motion
	<i>Docket Text:</i> BRIEF in Support of [120] MOTION for Leave to <i>TAKE THE DEPOSITION OF ROYCE SMITH AND FOR EXPEDITED BRIEFING SCHEDULE</i> filed by Plaintiff USA. (Attachments: # (1) Exhibit 1, # (2) Exhibit 2, # (3) Exhibit 3, # (4) Exhibit 4, # (5) Exhibit 5, # (6) Exhibit 6)(Moscato, John)		
123	<i>Filed & Entered:</i>	01/05/2011	Order on Motion for Leave
	<i>Docket Text:</i> MINUTE ORDER granting [116] Plaintiff United States of America's Uncontested Motion for Leave to Complete Certain Discovery and to Modify Scheduling Order. Plaintiff's Rule 26(a)(2) disclosures due by 3/1/2011. Defendant's Rule 26(a)(2) disclosures due by 5/10/2011. Expert discovery due by 7/30/2011. Dispositive Motions due by 7/30/2011. The parties may complete the Rule 30(b)(6) depositions of Emilio Llamozas and Boulder County. Also pending before the Court is Plaintiff's Motion for Leave to Take the Deposition of Royce Smith and for Expedited Briefing Schedule [filed 12/30/2010; docket #120]. Defendant shall respond to this motion on or before 1/17/2011. Plaintiff may reply within seven days of Defendant's response. By Magistrate Judge Michael E. Hegarty on 1/5/2011. (mehcd)		
124	<i>Filed & Entered:</i>	01/17/2011	Brief in Opposition to Motion
	<i>Docket Text:</i> BRIEF in Opposition to [120] MOTION for Leave to <i>TAKE THE DEPOSITION OF ROYCE SMITH AND FOR EXPEDITED BRIEFING SCHEDULE</i> filed by Defendant CEMEX, Inc.. (Attachments: # (1) Exhibit 1, # (2) Exhibit 2, # (3) Exhibit 3, # (4) Exhibit 4, # (5) Exhibit 5)(Thompson, Chet)		
125	<i>Filed & Entered:</i>	01/24/2011	Reply to Response to Motion
	<i>Docket Text:</i> REPLY to Response to [120] MOTION for Leave to <i>TAKE THE DEPOSITION OF ROYCE SMITH AND FOR EXPEDITED BRIEFING SCHEDULE</i> filed by Plaintiff USA. (Attachments: # (1)		

	Corrected Exhibit 3, # (2) Corrected Exhibit 4)(Moscato, John)	
126	<i>Filed:</i> 01/27/2011 <i>Entered:</i> 01/28/2011	Order on Motion for Leave
	<i>Docket Text:</i> ORDER granting [120] Plaintiff's Motion for Leave to Take the Deposition of Royce Smith and for Expedited Briefing Schedule. Plaintiff may depose Mr. Smith for no more than two hours regarding only the factual circumstances around the injection of oxygen during the April 1998 Test, to be completed before 2/15/2011. By Magistrate Judge Michael E. Hegarty on 1/27/2011. (mehcd)	
127	<i>Filed & Entered:</i> 03/28/2011 <i>Terminated:</i> 03/28/2011	Motion to Withdraw as Attorney
	<i>Docket Text:</i> MOTION to Withdraw as Attorney by <i>Christina J. Valerio</i> by Defendant CEMEX, Inc.. (Valerio, Christina)	
128	<i>Filed & Entered:</i> 03/28/2011	Notice of Entry of Appearance
	<i>Docket Text:</i> NOTICE of Entry of Appearance by Jessica Goneau Simbalenko on behalf of CEMEX, Inc. (Simbalenko, Jessica)	
131	<i>Filed & Entered:</i> 05/23/2011 <i>Terminated:</i> 05/25/2011	Motion for Leave
	<i>Docket Text:</i> Unopposed MOTION for Leave to <i>Serve Rebuttal Expert Disclosures on Defendant and to Modify Scheduling Order</i> by Plaintiff USA. (Attachments: # (1) Proposed Order (PDF Only))(Moscato, John)	
132	<i>Filed & Entered:</i> 05/23/2011	Brief in Support of Motion
	<i>Docket Text:</i> BRIEF in Support of [131] Unopposed MOTION for Leave to <i>Serve Rebuttal Expert Disclosures on Defendant and to Modify Scheduling Order</i> filed by Plaintiff USA. (Moscato, John)	
134	<i>Filed & Entered:</i> 05/25/2011	Order on Motion for Leave
	<i>Docket Text:</i> MINUTE ORDER granting [131] Plaintiff United States of America's Unopposed Motion for Leave to Serve Rebuttal Expert Disclosures and to Modify Scheduling Order. Plaintiff's rebuttal expert disclosures due by 6/24/2011. Expert discovery due by 8/15/2011. Dispositive motions due by 8/29/2011. By Magistrate Judge Michael E. Hegarty on 5/25/2011. (mehcd)	
135	<i>Filed & Entered:</i> 07/07/2011	Notice (Other)
	<i>Docket Text:</i> NOTICE of Name Change by Defendant CEMEX, Inc. (Scott, Jessica)	
136	<i>Filed & Entered:</i> 07/12/2011 <i>Terminated:</i> 08/11/2011	Motion to Strike
	<i>Docket Text:</i> MOTION to Strike New Expert Reports of Plaintiff's Experts Venner and Westlin and Non-Rebuttal Materials Submitted by Plaintiff's Experts Fox and Greer, and Request for Expedited Briefing by Defendant CEMEX, Inc. (Attachments: # (1) Appendix, # (2) Exhibit A, # (3) Exhibit B, # (4) Exhibit C, # (5) Exhibit D, # (6) Exhibit E, # (7) Exhibit F, # (8) Exhibit G, # (9) Exhibit H, # (10) Exhibit I, # (11) Exhibit J, # (12) Exhibit K, # (13) Exhibit L, # (14) Exhibit M, # (15) Proposed Order (PDF Only)) (Thompson, Chet) Modified on 7/13/2011 to edit text to clarify title of document (wjc,).	
139	<i>Filed & Entered:</i> 07/14/2011 <i>Terminated:</i> 07/15/2011	Motion to Stay
	<i>Docket Text:</i> MOTION to Stay of Expert Discovery and the Dispositive Motion Deadline Pending Resolution of Cemex's Motion to Strike Plaintiff's Expert Rebuttal Disclosures by Defendant CEMEX, Inc.. (Attachments: # (1) Proposed Order (PDF Only))(Thompson, Chet)	
140	<i>Filed & Entered:</i> 07/14/2011	Response to Motion
	<i>Docket Text:</i> RESPONSE to [136] MOTION to Strike New Expert Reports of Plaintiff's Experts Venner and Westlin and Non-Rebuttal Materials Submitted by Plaintiff's Experts Fox and Greer MOTION for Hearing/Conference Request for Expedited Briefing UNITED STATES OF AMERICAS PARTIAL RESPONSE filed by Plaintiff USA. (Moscato, John)	

141	<i>Filed & Entered:</i>	07/14/2011	Minute Order
	<i>Docket Text:</i> MINUTE ORDER re: [136] Defendant CEMEX Inc.'s Motion to Strike New Expert Reports of Plaintiff's Experts Venner and Westlin and Non-Rebuttal Materials Submitted by Plaintiff's Experts Fox and Greer and Request for Expedited Briefing. Plaintiff shall respond on or before 7/25/2011, and Defendant may reply on or before 8/1/2011. By Magistrate Judge Michael E. Hegarty on 7/14/2011. (mehcd)		
143	<i>Filed & Entered:</i>	07/15/2011	Order on Motion to Stay
	<i>Docket Text:</i> MINUTE ORDER denying [139] Defendant's Motion for Temporary Stay of Expert Discovery and the Dispositive Motion Deadline Pending Resolution of CEMEX's Motion to Strike Plaintiff's Expert Rebuttal Disclosures, by Magistrate Judge Michael E. Hegarty on 7/15/2011. (mehcd)		
144	<i>Filed & Entered:</i>	07/25/2011	Brief in Opposition to Motion
	<i>Docket Text:</i> BRIEF in Opposition to [136] MOTION to Strike <i>New Expert Reports of Plaintiff's Experts Venner and Westlin and Non-Rebuttal Materials Submitted by Plaintiff's Experts Fox and Greer</i> MOTION for Hearing/Conference <i>Request for Expedited Briefing</i> filed by Plaintiff USA. (Attachments: # (1) Exhibit Exhibit 1, # (2) Exhibit Exhibit 2, # (3) Exhibit Exhibit 3)(Moscato, John)		
145	<i>Filed & Entered:</i>	08/01/2011	Brief in Support of Motion
	<i>Docket Text:</i> BRIEF in Support of [136] MOTION to Strike <i>New Expert Reports of Plaintiff's Experts Venner and Westlin and Non-Rebuttal Materials Submitted by Plaintiff's Experts Fox and Greer</i> MOTION for Hearing/Conference <i>Request for Expedited Briefing</i> filed by Defendant CEMEX, Inc.. (Attachments: # (1) Appendix to CEMEX's REPLY ISO Motion to Strike New Expert Reports.pdf, # (2) Exhibit N, # (3) Exhibit O, # (4) Exhibit P)(Thompson, Chet)		
146	<i>Filed & Entered:</i>	08/02/2011	Notice of Entry of Appearance
	<i>Docket Text:</i> NOTICE of Entry of Appearance by David Patrick Ross on behalf of CEMEX, Inc. (Ross, David)		
147	<i>Filed & Entered:</i>	08/04/2011	Motion for Summary Judgment
	<i>Terminated:</i>	03/30/2012	
	<i>Docket Text:</i> MOTION for Summary Judgment by Defendant CEMEX, Inc.. (Attachments: # (1) Appendix to Motion for Summary Judgment, # (2) Exhibit A, # (3) Exhibit B, # (4) Exhibit C, # (5) Exhibit D, # (6) Exhibit E, # (7) Exhibit F, # (8) Exhibit G, # (9) Exhibit H, # (10) Exhibit I, # (11) Exhibit J, # (12) Exhibit K, # (13) Exhibit L, # (14) Exhibit M, # (15) Exhibit N, # (16) Exhibit O, # (17) Exhibit P, # (18) Exhibit Q, # (19) Exhibit R, # (20) Exhibit S, # (21) Exhibit T)(Thompson, Chet)		
148	<i>Filed & Entered:</i>	08/07/2011	Motion for Leave
	<i>Terminated:</i>	08/09/2011	
	<i>Docket Text:</i> MOTION for Leave to <i>Resume the Deposition of Peter Westlin Beyond the Close of Expert Discovery</i> by Defendant CEMEX, Inc.. (Attachments: # (1) Exhibit Exhibit A to Motion)(Thompson, Chet)		
150	<i>Filed & Entered:</i>	08/09/2011	Order on Motion for Leave
	<i>Docket Text:</i> MINUTE ORDER granting [148] Defendant's Motion for Leave to Resume the Deposition of Peter Westlin Beyond the Close of Expert Discovery. Expert discovery is extended to and including 8/31/2011, for the sole purpose of completing Mr. Westlin's deposition. By Magistrate Judge Michael E. Hegarty on 8/9/2011. (mehcd)		
152	<i>Filed & Entered:</i>	08/11/2011	Order on Motion to Strike
	<i>Docket Text:</i> ORDER granting in part and denying in part [136] CEMEX Inc.'s Motion to Strike New Expert Reports of Plaintiff's Experts Venner and Westlin and Non-Rebuttal Materials Submitted by Plaintiff's Experts Fox and Greer. Expert discovery deadline extended to and including 10/11/2011. Dispositive motions deadline extended to and including 11/14/2011. By Magistrate Judge Michael E. Hegarty on 8/11/2011. (mehcd)		
153	<i>Filed & Entered:</i>	08/16/2011	Motion for Extension of Time to File Response/Reply
	<i>Terminated:</i>	08/18/2011	

	<i>Docket Text:</i> MOTION for Extension of Time to File Response/Reply as to [147] MOTION for Summary Judgment by Plaintiff USA. (Attachments: # (1) Proposed Order (PDF Only))(Moscato, John)	
154	<i>Filed & Entered:</i> 08/17/2011 <i>Terminated:</i> 08/18/2011	Motion to Expedite
	<i>Docket Text:</i> MOTION to Expedite <i>Briefing and Determination on Plaintiff's Motion for Extension of Time (Doc. # 153) to File a Response to Defendant CEMEX, Inc.'s Motion for Summary Judgment (Doc. # 147)</i> by Plaintiff USA. (Moscato, John)	
156	<i>Filed & Entered:</i> 08/25/2011 <i>Terminated:</i> 09/24/2012	Objection/Appeal of Magistrate Judge Decision to District Court
	<i>Docket Text:</i> OBJECTION/Appeal of Magistrate Judge Decision to District Court re [152] Order on Motion to Strike,, Order on Motion for Hearing/Conference, <i>Partial Objection</i> by Plaintiff USA. (Moscato, John)	
157	<i>Filed & Entered:</i> 08/29/2011	Response to Objection/Appeal of Magistrate Judge Decision
	<i>Docket Text:</i> RESPONSE to [156] Objection/Appeal of Magistrate Judge Decision <i>re August 11, 2011 Order</i> filed by Defendant CEMEX, Inc.. (Thompson, Chet)	
158	<i>Filed & Entered:</i> 09/26/2011	Response to Motion
	<i>Docket Text:</i> RESPONSE to [147] MOTION for Summary Judgment filed by Plaintiff USA. (Attachments: # (1) Appendix A, # (2) Appendix B, # (3) Exhibit 1, # (4) Exhibit 2, # (5) Exhibit 3, # (6) Exhibit 4, # (7) Exhibit 5, # (8) Exhibit 6, # (9) Exhibit 7, # (10) Exhibit 8, # (11) Exhibit 9, # (12) Exhibit 10, # (13) Exhibit 11, # (14) Exhibit 12, # (15) Exhibit 13, # (16) Exhibit 14, # (17) Exhibit 15, # (18) Exhibit 16, # (19) Exhibit 17, # (20) Exhibit 18, # (21) Exhibit 19, # (22) Exhibit 20, # (23) Exhibit 21, # (24) Exhibit 22, # (25) Exhibit 23, # (26) Exhibit 24, # (27) Exhibit 25, # (28) Exhibit 26, # (29) Exhibit 27, # (30) Exhibit 28, # (31) Exhibit 29, # (32) Exhibit 30, # (33) Exhibit 31, # (34) Exhibit 32, # (35) Exhibit 33, # (36) Exhibit 34, # (37) Exhibit 35, # (38) Exhibit 36, # (39) Exhibit 37, # (40) Exhibit 38, # (41) Exhibit 39, # (42) Exhibit 40, # (43) Exhibit 41, # (44) Exhibit 42, # (45) Exhibit 43, # (46) Exhibit 44, # (47) Exhibit 45, # (48) Exhibit 46, # (49) Exhibit 47, # (50) Exhibit 48, # (51) Exhibit 49, # (52) Exhibit 50, # (53) Exhibit 51, # (54) Exhibit 52, # (55) Exhibit 53, # (56) Exhibit 54, # (57) Exhibit 55, # (58) Exhibit 56, # (59) Exhibit 57, # (60) Exhibit 58, # (61) Exhibit 59, # (62) Exhibit 60, # (63) Exhibit 61, # (64) Exhibit 62, # (65) Exhibit 63, # (66) Exhibit 64, # (67) Exhibit 65, # (68) Exhibit 66, # (69) Exhibit 67, # (70) Exhibit 68, # (71) Exhibit 69, # (72) Exhibit 70, # (73) Exhibit 71, # (74) Exhibit 72, # (75) Exhibit 73, # (76) Exhibit 74, # (77) Exhibit 75, # (78) Exhibit 76)(Moscato, John)	
159	<i>Filed & Entered:</i> 09/28/2011 <i>Terminated:</i> 09/29/2011	Motion for Extension of Time to File Response/Reply
	<i>Docket Text:</i> Unopposed MOTION for Extension of Time to File Response/Reply as to [147] MOTION for Summary Judgment by Defendant CEMEX, Inc.. (Attachments: # (1) Proposed Order (PDF Only)) (Thompson, Chet)	
161	<i>Filed & Entered:</i> 10/27/2011 <i>Terminated:</i> 10/28/2011	Motion for Leave
	<i>Docket Text:</i> Unopposed MOTION for Leave to <i>Take Depositions of Defendant's Surrebuttal Experts Beyond the Close of Expert Discovery</i> by Plaintiff USA. (Moscato, John)	
163	<i>Filed & Entered:</i> 10/28/2011	Order on Motion for Leave
	<i>Docket Text:</i> MINUTE ORDER granting [161] Plaintiff United States' Unopposed Motion for Leave to Take Depositions of Defendant's Surrebuttal (sic) Experts Beyond the Close of Expert Discovery. Plaintiff shall complete all depositions of Defendant's surrebuttal experts by 12/16/2011. By Magistrate Judge Michael E. Hegarty on 10/28/2011. (mehcd)	
164	<i>Filed & Entered:</i> 11/03/2011 <i>Terminated:</i> 11/07/2011	Motion for Extension of Time
	<i>Docket Text:</i> Joint MOTION for Extension of Time to <i>Extend Fed. R. Evid. 702 Motion Deadline</i> by Defendant CEMEX, Inc.. (Thompson, Chet)	

165	<i>Filed & Entered:</i>	11/03/2011	Brief in Support of Motion
	<i>Docket Text:</i> BRIEF in Support of [147] MOTION for Summary Judgment filed by Defendant CEMEX, Inc.. (Attachments: # (1) Appendix A, # (2) Appendix B, # (3) Appendix C, # (4) Exhibit U, # (5) Exhibit V, # (6) Exhibit W, # (7) Exhibit X, # (8) Exhibit Y, # (9) Exhibit Z, # (10) Exhibit AA, # (11) Exhibit BB, # (12) Exhibit CC, # (13) Exhibit DD, # (14) Exhibit EE, # (15) Exhibit FF, # (16) Exhibit GG, # (17) Exhibit HH, # (18) Exhibit II, # (19) Exhibit JJ, # (20) Exhibit KK, # (21) Exhibit LL)(Thompson, Chet)		
167	<i>Filed & Entered:</i>	11/07/2011	Order on Motion for Extension of Time to File
	<i>Docket Text:</i> MINUTE ORDER granting in part and denying in part [164] the Joint Motion to Extend Fed. R. Evid. 702 Motion Deadline. The parties shall file Rule 702 motions on or before 1/30/2012. By Magistrate Judge Michael E. Hegarty on 11/7/2011. (mehcd)		
168	<i>Filed & Entered:</i>	11/09/2011	Motion for Leave
	<i>Terminated:</i>	11/22/2011	
	<i>Docket Text:</i> MOTION for Leave to File Surreply to CEMEX Inc.'s Reply in Support of [147] Motion for Summary Judgment by Plaintiff USA. (Moscato, John) Modified on 11/10/2011 to create linkage (wjc,).		
169	<i>Filed & Entered:</i>	11/14/2011	Motion for Partial Summary Judgment
	<i>Terminated:</i>	09/24/2012	
	<i>Docket Text:</i> MOTION for Partial Summary Judgment by Plaintiff USA. (Attachments: # (1) Exhibit 1, # (2) Exhibit 2, # (3) Exhibit 3, # (4) Exhibit 4, # (5) Exhibit 5, # (6) Exhibit 6, # (7) Exhibit 7, # (8) Exhibit 8, # (9) Exhibit 9, # (10) Exhibit 10)(Moscato, John)		
170	<i>Filed & Entered:</i>	11/18/2011	Motion for Extension of Time to File Response/Reply
	<i>Terminated:</i>	11/22/2011	
	<i>Docket Text:</i> Unopposed MOTION for Extension of Time to File Response/Reply as to [169] MOTION for Partial Summary Judgment by Defendant CEMEX, Inc.. (Thompson, Chet)		
173	<i>Filed & Entered:</i>	11/29/2011	Surreply
	<i>Docket Text:</i> SURREPLY re [147] MOTION for Summary Judgment filed by Plaintiff USA. (Attachments: # (1) Appendix A, # (2) Exhibit 77, # (3) Exhibit 78, # (4) Exhibit 79, # (5) Exhibit 80, # (6) Exhibit 81, # (7) Exhibit 82, # (8) Exhibit 83, # (9) Exhibit 84, # (10) Exhibit 85, # (11) Exhibit 86, # (12) Exhibit 87, # (13) Exhibit 88, # (14) Exhibit 89, # (15) Exhibit 90, # (16) Exhibit 91, # (17) Exhibit 92, # (18) Exhibit 93) (Moscato, John)		
174	<i>Filed & Entered:</i>	12/23/2011	Brief in Opposition to Motion
	<i>Docket Text:</i> BRIEF in Opposition to [169] MOTION for Partial Summary Judgment filed by Defendant CEMEX, Inc.. (Attachments: # (1) Appendix A, # (2) Appendix B, # (3) Exhibit A, # (4) Exhibit B, # (5) Exhibit C, # (6) Exhibit D, # (7) Exhibit E, # (8) Exhibit F, # (9) Exhibit G, # (10) Exhibit H, # (11) Exhibit I, # (12) Exhibit J, # (13) Exhibit K, # (14) Exhibit L)(Thompson, Chet)		
175	<i>Filed & Entered:</i>	01/20/2012	Reply to Response to Motion
	<i>Docket Text:</i> REPLY to Response to [169] MOTION for Partial Summary Judgment filed by Plaintiff USA. (Attachments: # (1) Exhibit 11, # (2) Exhibit 12, # (3) Exhibit 13, # (4) Exhibit 14)(Moscato, John)		
176	<i>Filed & Entered:</i>	01/30/2012	Motion to Disqualify
	<i>Terminated:</i>	04/06/2012	
	<i>Docket Text:</i> Joint MOTION to Disqualify <i>Under Fed.R.Evid 702 Regarding Opinions of Defendant's Experts Mr. Hofmann and Mr. Young</i> by Plaintiff USA. (Moscato, John)		
177	<i>Filed & Entered:</i>	01/30/2012	Motion to Disqualify
	<i>Terminated:</i>	04/06/2012	
	<i>Docket Text:</i> Joint MOTION to Disqualify <i>Under Fed. R. Evid. 702 Regarding Opinions of Plaintiff's Experts Dr. Ranajit Sahu, Mr. Peter Westlin, and Dr. Phyllis Fox</i> by Defendant CEMEX, Inc.. (Gottschalk, Hugh)		
178	<i>Filed & Entered:</i>	03/30/2012	Order on Motion for Summary Judgment

	<i>Docket Text:</i> OPINION AND ORDER GRANTING IN PART AND DENYING IN PART MOTION FOR SUMMARY JUDGMENT. Defendant Cemex, Inc.'s [147] Motion to for Summary Judgment is GRANTED IN PART AND DENIED IN PART. The motion is granted to the extent that Claims One and Two are based on Title V of the CAA. The motion is otherwise denied. The parties shall, within 10 days of the issuance of this order, contact chambers to set this matter for a Final Pretrial Conference and a Trial, by Judge Marcia S. Krieger on 03/30/2012.(wjcsl,)	
180	<i>Filed & Entered:</i> 06/07/2012	Notice of Change of Address/Contact Information
	<i>Docket Text:</i> NOTICE of Change of Address/Contact Information by Hugh Q. Gottschalk (Gottschalk, Hugh)	
181	<i>Filed & Entered:</i> 06/27/2012	Motion Hearing
	<i>Docket Text:</i> MINUTE ENTRY for Law and Motion held before Judge Marcia S. Krieger on 6/27/2012. Rule 702 hearings are set 10/16/2012; 10/17/2012 and 10/25/2012 all beginning at 9:00 AM in Courtroom A 901 before Judge Marcia S. Krieger. Other matters addressed are set forth in the Minutes. Court Reporter: Janet Coppock. (mskcd)	
183	<i>Filed & Entered:</i> 07/03/2012	Transcript
	<i>Docket Text:</i> TRANSCRIPT of Hearing on Law and Motion held on June 27, 2012 before Judge Marcia S. Krieger. Pages: 1-17. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. </P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 10/4/2012. (Coppock, Janet)	
184	<i>Filed & Entered:</i> 09/24/2012	Order on Appeal of Magistrate Judge Decision to District Court
	<i>Docket Text:</i> OPINION AND ORDER DENYING MOTION FOR PARTIAL SUMMARY JUDGMENT AND SUSTAINING OBJECTION TO ORDER OF THE MAGISTRATE JUDGE: The Governments' Motion for Partial Summary Judgment [169] is DENIED , but the Court finds no genuine dispute that CEMEX's modifications were not "routine," and thus, that the facility had not "begun normal operations" at the relevant time, such that assessment of any emissions increase resulting from the modification should consider the modified facility's "potential emissions". These facts shall be deemed established for purposes of trial. The Court SUSTAINS the Government's Objections [156] to the Magistrate Judge's August 11, 2011 Order (#152) and VACATES that portion of the Order that directs cost-sharing. The parties shall, within 10 days of the issuance of this order, contact chambers to set this matter for a Final Pretrial Conference and a Trial. by Judge Marcia S. Krieger on 9/24/12.(msksec,)	
185	<i>Filed & Entered:</i> 10/01/2012	Order
	<i>Docket Text:</i> ORDER SETTING FINAL PRETRIAL CONFERENCE: Final Pretrial Conference set for 3/5/2013 at 09:00 AM in Courtroom A 901 before Judge Marcia S. Krieger. By Judge Marcia S. Krieger on 10/1/12. (msksec,) Modified on 10/2/2012 to remove text entered in error (klyon,).	
186	<i>Filed & Entered:</i> 11/06/2012	Notice of Entry of Appearance
	<i>Docket Text:</i> NOTICE of Entry of Appearance By Linda S. Kato by John N. Moscato on behalf of All Plaintiffs (Moscato, John)	
187	<i>Filed & Entered:</i> 01/04/2013 <i>Terminated:</i> 01/16/2013	Motion in Limine
	<i>Docket Text:</i> WITHDRAWN - MOTION in Limine to Exclude Certain Testimony of Gerald L. Young by Plaintiff USA. (Attachments: # (1) Exhibit 1, # (2) Exhibit 2, # (3) Exhibit 3, # (4) Exhibit 4, # (5) Exhibit 5, # (6) Exhibit 6, # (7) Exhibit 7, # (8) Exhibit 8, # (9) Exhibit 9, # (10) Exhibit 10, # (11) Exhibit 11) (Moscato, John) Modified on 1/16/2013 to Withdraw pursuant to Order dated 1/16/2013. (klyon,).	
188	<i>Filed & Entered:</i> 01/04/2013	Motion in Limine

	<i>Terminated:</i>	03/05/2013	
	<i>Docket Text:</i> MOTION in Limine <i>for Determination that Defendant CEMEX Waived Any Privilege Covering Communications Among CEMEX, Gary Parish, and/or McVehil-Monnett Associates Regarding Clean Air Act Permitting</i> by Plaintiff USA. (Attachments: # (1) Exhibit 1, # (2) Exhibit 2, # (3) Exhibit 3, # (4) Exhibit 4, # (5) Exhibit 5, # (6) Exhibit 6, # (7) Exhibit 7, # (8) Exhibit 8, # (9) Exhibit 9)(Rende, Leigh)		
189	<i>Filed & Entered:</i>	01/14/2013	Response to Motion
	<i>Docket Text:</i> RESPONSE to [187] MOTION in Limine <i>to Exclude Certain Testimony of Gerald L. Young</i> filed by Defendant CEMEX, Inc.. (Thompson, Chet)		
190	<i>Filed & Entered:</i>	01/15/2013	Motion to Withdraw
	<i>Terminated:</i>	01/16/2013	
	<i>Docket Text:</i> MOTION to Withdraw <i>the United States of America's Motion in Limine to Exclude Certain Testimony of Gerald L. Young (Docket 187)</i> by Plaintiff USA. (Moscato, John)		
192	<i>Filed & Entered:</i>	01/28/2013	Response to Motion
	<i>Docket Text:</i> RESPONSE to [188] MOTION in Limine <i>for Determination that Defendant CEMEX Waived Any Privilege Covering Communications Among CEMEX, Gary Parish, and/or McVehil-Monnett Associates Regarding Clean Air Act Permitting</i> filed by Defendant CEMEX, Inc.. (Attachments: # (1) Exhibit A, # (2) Exhibit B, # (3) Exhibit C, # (4) Exhibit D, # (5) Exhibit E, # (6) Exhibit F, # (7) Exhibit G, # (8) Exhibit H, # (9) Exhibit I, # (10) Exhibit J, # (11) Exhibit K, # (12) Exhibit L)(Thompson, Chet)		
193	<i>Filed & Entered:</i>	02/01/2013	Motion in Limine
	<i>Terminated:</i>	03/05/2013	
	<i>Docket Text:</i> MOTION in Limine <i>to Exclude Certain Testimony of John E. Hofmann Pursuant to Fed R E 402</i> by Plaintiff USA. (Attachments: # (1) Exhibit A, # (2) Exhibit B, # (3) Exhibit C)(Moscato, John)		
194	<i>Filed & Entered:</i>	02/07/2013	Motion for Extension of Time to File Response/Reply
	<i>Terminated:</i>	02/07/2013	
	<i>Docket Text:</i> MOTION for Extension of Time to File Response/Reply as to [188] MOTION in Limine <i>for Determination that Defendant CEMEX Waived Any Privilege Covering Communications Among CEMEX, Gary Parish, and/or McVehil-Monnett Associates Regarding Clean Air Act Permitting</i> by Plaintiff USA. (Moscato, John)		
196	<i>Filed & Entered:</i>	02/08/2013	Motion for Extension of Time to File Response/Reply
	<i>Terminated:</i>	02/11/2013	
	<i>Docket Text:</i> MOTION for Extension of Time to File Response/Reply as to [193] MOTION in Limine <i>to Exclude Certain Testimony of John E. Hofmann Pursuant to Fed R E 402</i> by Defendant CEMEX, Inc.. (Thompson, Chet)		
198	<i>Filed & Entered:</i>	02/19/2013	Reply to Response to Motion
	<i>Docket Text:</i> REPLY to Response to [188] MOTION in Limine <i>for Determination that Defendant CEMEX Waived Any Privilege Covering Communications Among CEMEX, Gary Parish, and/or McVehil-Monnett Associates Regarding Clean Air Act Permitting</i> filed by Plaintiff USA. (Attachments: # (1) Exhibit 10) (Moscato, John)		
199	<i>Filed & Entered:</i>	02/26/2013	Motion for Order
	<i>Terminated:</i>	04/02/2013	
	<i>Docket Text:</i> Joint MOTION for Order to <i>enter Final Pretrial Order</i> by Plaintiff USA. (Attachments: # (1) Proposed Order (PDF Only) Pretrial Order, # (2) Appendix Witness List, # (3) Appendix Exhibit List) (Moscato, John)		
200	<i>Filed & Entered:</i>	03/05/2013	Order on Motion in Limine
	<i>Docket Text:</i> MINUTE ENTRY for Final Pretrial Conference held before Chief Judge Marcia S. Krieger on 3/5/2013. Matters addressed and deadlines imposed are set forth in the Minutes. [188] Motion in Limine; [193] Motion in Limine are both DENIED with leave to renew. Court Reporter: Terri Lindblom. (mskcd)		

202	<i>Filed & Entered:</i> 04/19/2013	Notice of Settlement
	<i>Docket Text:</i> NOTICE of Settlement by Plaintiff USA (Attachments: # (1) Consent Decree)(Moscato, John)	
203	<i>Filed & Entered:</i> 06/06/2013	Motion for Judgment
	<i>Terminated:</i> 06/12/2013	
	<i>Docket Text:</i> Unopposed MOTION for Judgment <i>to Enter Consent Decree</i> by Plaintiff USA. (Attachments: # (1) Exhibit Memorandum in Support, # (2) Exhibit Exhibit 1)(Moscato, John)	
205	<i>Filed & Entered:</i> 03/26/2018	Stipulation
	<i>Docket Text:</i> STIPULATION re [204] Order on Motion for Judgment,, <i>Joint Stipulation to Terminate Consent Decree</i> by Plaintiff USA. (Attachments: # (1) Exhibit 1, # (2) Exhibit 2)(Moscato, John)	

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